

SCHEDULE OF REFERENCES — FOI REQUEST, FLAX MILL CARAVAN PARK (29 JUNE 2026)

This schedule lists the legislation, regulations, local planning scheme provisions, management agreement clauses and Shire documents referred to in the accompanying Freedom of Information request.

FREEDOM OF INFORMATION ACT 1992 (WA)

s. 23 — Refusing access, grounds for: the grounds on which an agency may refuse access.

s. 24 — Exempt matter, deleting before access given: provides for an edited copy with exempt matter deleted, in place of refusing a whole document.

s. 26 — Documents that cannot be found or do not exist, notice of: requires the agency to give notice where a document cannot be found or does not exist.

s. 30 — Notice of decision, form etc. of: the decision notice, which must give reasons and findings.

Schedule 1 clause 3 — Personal information: matter is exempt if its disclosure would reveal personal information about an individual.

Schedule 1 clause 7 — Legal professional privilege: "Matter is exempt matter if it would be privileged from production in legal proceedings on the ground of legal professional privilege."

CARAVAN PARKS AND CAMPING GROUNDS ACT 1995 (WA)

s. 6: the general requirement to hold a licence to operate a facility.

s. 15 — Local government may operate facility in its district without licence. s. 15(1): "Despite section 6, a local government is not required to hold a licence to operate a facility in its district but sections 13 and 31 and all subsidiary legislation made under this Act apply to a local government which operates a facility in its district as if it were the licence holder in respect of the facility." s. 15(2): the local government must ensure its facilities are inspected under s. 21.

s. 21 — Inspections and works specification notices. s. 21(1): the local government is to inspect each facility at least once every 12 months. s. 21(3): after inspecting, it may issue a works specification notice requiring compliance works.

CARAVAN PARKS AND CAMPING GROUNDS REGULATIONS 1997 (WA)

regulation 3 — Terms used: defines "long stay site" as "a site at a caravan park which is to be occupied consecutively by the one person or group of persons for any period of time."

regulation 17 — Schedule 7, licence holder's duty: the licence holder is to ensure Schedule 7 is complied with in respect of the facility.

regulation 50 (Part 5 — Licensing of caravan parks and camping grounds) — Licence to specify number and types of sites and other conditions: "A local government is to endorse on each licence, as conditions of the licence — (a) the maximum number of sites that may be used at

the facility ...; (c) the maximum number of sites of particular types that may be used at the facility ...".

RESIDENTIAL PARKS (LONG-STAY TENANTS) ACT 2006 (WA)

s. 5 — Long-stay agreements: s. 5(1) defines a long-stay agreement; s. 5(2) excludes occupation for a holiday, by an employee or agent, or by an itinerant worker.

"Site-only agreement" (interpretation): "a long-stay agreement under which the long-stay tenant has the right to occupy a relocatable home provided by the long-stay tenant on a site in the residential park" — i.e. where the tenant provides their own van, camper or similar.

s. 5(5): "If an agreement confers a right to occupy the same or similar site or other park premises for a period of 3 months or longer, the agreement is taken, in the absence of proof to the contrary, not to have been entered into for the purpose of conferring a right to occupy the site or premises for a holiday."

SHIRE OF BOYUP BROOK TOWN PLANNING SCHEME NO. 2 (LOCAL PLANNING SCHEME)

clause 17 — Zoning Table (Table 3), interpreted by clause 18: the scheme's zoning table lists both "Caravan Park" and "Workforce accommodation" as land-use classes (pp. 14 and 16).

Definitions: "caravan park" is defined by reference to the Caravan Parks and Camping Grounds Act 1995 (p. 34).

MANAGEMENT AGREEMENT (SHIRE / CMCA), FOI REF ICR15912

Preamble: the park "is operated under CMCA's Policies, Procedures and General Rules of Use (the latter of which, some are included in Schedule C)."

clause 1.2: defines the "Caravan Park" as the park at Jackson Street "currently known as 'Flax Mill Caravan Park' and to be renamed 'CMCA Eco RV Park Plus, Boyup Brook'."

clause 2.1: the term commences 1 August 2022 and ends 31 July 2027.

clause 5.1: "The Manager will use and occupy the Premises only for the purpose of a caravan park and connected activities and for no other purpose whatsoever."

clause 5.2: the Manager covenants to conduct its business so as to comply with any statute, including any subordinate legislation, and the requirements of any competent authority.

SHIRE STRATEGIC AND PLANNING DOCUMENTS

Strategic Community Plan 2021–2031: affordable housing objectives (pp. 13 and 15); "Increase staff accommodation" (p. 19).

Local Planning Strategy (April 2024): "Develop land that is owned by the Shire and/or Crown to facilitate the creation of affordable housing" (p. 10); Housing (section 4.2.1, p. 75).

Workforce Plan 2026–2030: "Housing availability remains a structural constraint across regional Western Australia" (p. 7); "Housing Constraints Impacting Recruitment" — assessed as an Extreme risk (p. 13).

IDENTIFIERS

Guest Stay Policy: Ref CMCA-GSP-FMB-001, Version 1.0, effective 28 May 2026.

Council item: Item 10.4.2, Ordinary Council Meeting 28 May 2026 (Guest Stay Policy / Short Term Stay Policy).